



Competition and Consumer Amendment (Responding to Exceptional Circumstances) Act 2026

No. 48, 2026

An Act to amend the *Competition and Consumer Act 2010* and the *National Emergency Declaration Act 2020*, and for related purposes

Note: An electronic version of this Act is available on the Federal Register of Legislation
(<https://www.legislation.gov.au/>)

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An Act to amend the *Competition and Consumer Act 2010* and the *National Emergency Declaration Act 2020*, and for related purposes

[Assented to 26 May 2026]

The Parliament of Australia enacts:

<i>No. 48, 2026</i>	<i>Competition and Consumer Amendment (Responding to Exceptional Circumstances) Act 2026</i>	<i>1</i>
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1 Short title

This Act is the *Competition and Consumer Amendment (Responding to Exceptional Circumstances) Act 2026*.

2 Commencement

- (1) Each provision of this Act specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	Column 2	Column 3
Provisions	Commencement	Date/Details
1. Sections 1 to 3 and anything in this Act not elsewhere covered by this table	The day this Act receives the Royal Assent.	26 May 2026
2. Schedules 1 and 2	The day after this Act receives the Royal Assent.	27 May 2026

Note: This table relates only to the provisions of this Act as originally enacted. It will not be amended to deal with any later amendments of this Act.

- (2) Any information in column 3 of the table is not part of this Act. Information may be inserted in this column, or information in it may be edited, in any published version of this Act.

3 Schedules

Legislation that is specified in a Schedule to this Act is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this Act has effect according to its terms.

Schedule 1—Exceptional circumstances exemption powers

Part 1—Main amendments

Competition and Consumer Act 2010

1 Subparagraph 90(7)(b)(ii)

Omit “conduct; or”, substitute “conduct.”.

2 Paragraph 90(7)(c)

Repeal the paragraph.

3 Subsection 90(9A)

Omit “and subparagraph (7)(c)(iii)”.

4 After Division 1 of Part VII of Chapter 6

Insert:

Division 1A—Authorisations in exceptional circumstances and emergencies

92A Definitions

(1) In this Division:

business day means a day that is not a Saturday, a Sunday or a public holiday in the Australian Capital Territory.

(2) A reference in this Division to an authorisation is a reference to an authorisation under this Division.

92B Commission may grant authorisations in exceptional circumstances and emergencies

Granting an authorisation in exceptional circumstances and emergencies

- (1) Subject to this Division, the Commission may, on an application by a person, grant an authorisation to a person to engage in conduct, specified in the authorisation, to which one or more provisions of Division 1 or 2 of Part IV specified in the authorisation would or might apply.

Note: For an extended meaning of engaging in conduct, see subsection 4(2).

Effect of an authorisation

- (2) While the authorisation remains in force, the provisions of Division 1 or 2 of Part IV specified in the authorisation do not apply in relation to the conduct to the extent that it is engaged in by:
- (a) the applicant; and
 - (b) any other person named or referred to in the application as a person who is engaged in, or who is proposed to be engaged in, the conduct; and
 - (c) any particular persons or classes of persons, as specified in the authorisation, who become engaged in the conduct.

Conditions

- (3) The Commission may specify conditions in the authorisation. Subsection (2) does not apply if any of the conditions are not complied with.
- (4) Without limiting subsection (3), a condition may include a requirement to obtain the approval of the Commission before engaging in certain conduct.

Single authorisation may deal with several types of conduct

- (5) The Commission may grant a single authorisation for all the conduct specified in an application for authorisation, or may grant separate authorisations for any of the conduct.

Past conduct

- (6) The Commission may grant an authorisation for conduct engaged in before the Commission decided the application.

Withdrawing an application

- (7) An applicant for an authorisation may at any time, by writing to the Commission, withdraw the application.

92C Procedure for applications

An application for an authorisation under this Division must:

- (a) be in a form approved by the Commission in writing and contain the information required by the form; and
- (b) be accompanied by any other information or documents prescribed by the regulations; and
- (c) specify that it is an application made under this Division.

92D Determination of applications

- (1) If a declaration mentioned in subsection (2) is in force, the Commission may, in respect of an application for an authorisation under this Division:
 - (a) make a determination in writing granting such authorisation as it considers appropriate; or
 - (b) make a determination in writing dismissing the application.
- (2) The declarations are the following:
 - (a) a declaration under section 95AE;
 - (b) a national emergency declaration (within the meaning of the *National Emergency Declaration Act 2020*).
- (3) The Commission must not make a determination under subsection (1) granting an authorisation in relation to conduct unless the Commission is satisfied that, in all the circumstances, the conduct would assist, or would be likely to assist, in the response to or recovery from the exceptional circumstances or emergency to which the declaration relates.
- (4) In making a determination under subsection (1), the Commission:

- (a) must have regard to:
 - (i) the likely benefit to the public resulting from the assistance, or likely assistance, in response to or recovery from the exceptional circumstances to which the declaration relates; and
 - (ii) the detriment to the public that would result, or be likely to result, from the conduct; and
 - (b) may have regard to any other public benefit that would result or likely result from the conduct.
- (5) A determination under subsection (1) must specify the exceptional circumstances or emergency to which it relates.
- (6) The Commission must state in writing its reasons for a determination under subsection (1).
- (7) The Commission must give the person who made the application written notice of the determination.
- (8) The Commission must not make a determination to grant a merger authorisation under this section.

92E Period for which authorisations remain in force

An authorisation under this Division is in force for the period:

- (a) starting on the day specified in the determination (which may be before the commencement of this section, but must not be before 1 April 2026); and
- (b) ending at the earliest of the following:
 - (i) the start of the day specified in the determination;
 - (ii) if the determination is revoked—the end of the day the revocation takes effect;
 - (iii) the end of the last day on which a declaration mentioned in subsection 92D(2) to which the determination relates is in force.

92F Variation of authorisations

- (1) The Commission may, at any time, make a determination in writing to vary an authorisation under this Division if the Commission considers it appropriate to do so.
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- (2) The Commission must not make a determination under subsection (1) varying an authorisation unless the Commission is satisfied that, in all the circumstances, the conduct specified in the authorisation as varied would assist, or would be likely to assist, in the response to or recovery from the exceptional circumstances or emergency to which the declaration relates.
- (3) In making a determination under subsection (1), the Commission:
 - (a) must have regard to:
 - (i) the likely benefit to the public resulting from the assistance, or likely assistance, in response to or recovery from the exceptional circumstances to which the declaration relates; and
 - (ii) the detriment to the public that would result, or be likely to result, from the conduct; and
 - (b) may have regard to any other public benefit that would result or likely result from the conduct.
- (4) The Commission must give the person who applied for the authorisation written notice stating:
 - (a) that the authorisation is varied; and
 - (b) details of the variation; and
 - (c) the date on which the variation takes effect.
- (5) The variation takes effect on the business day after the day on which the notice is given.

92G Revocation of authorisations

- (1) The Commission may, at any time, revoke an authorisation under this Division if the Commission considers that:
 - (a) the conduct would not assist, or would not be likely to assist, in the response to or recovery from the exceptional circumstances or emergency specified in the determination; or
 - (b) the conduct is not appropriate; or
 - (c) the authorisation was granted on the basis of evidence or information that was false or misleading in a material particular; or

- (d) a condition to which the authorisation was expressed to be subject has not been complied with.
- (2) The Commission must give the person who applied for the authorisation written notice stating:
 - (a) that the authorisation is revoked; and
 - (b) the date on which the revocation takes effect.
- (3) The revocation takes effect on the business day after the day on which the notice is given.

92H Register of applications and proposals

- (1) The Commission must keep a register of the following things under this Division:
 - (a) determinations of applications for authorisations;
 - (b) variations of authorisations;
 - (c) revocation of authorisations.
- (2) The register must include the statement of the reasons given by the Commissioner for a determination.
- (3) The Commission is not required under subsection (2) to include the determination of an application on the register until the end of the period of 7 business days beginning on:
 - (a) if a declaration under section 95AE is in force—the day on which the declaration ceases to be in force; or
 - (b) if a national emergency declaration (within the meaning of the *National Emergency Declaration Act 2020*) is in force—the day on which the declaration ceases to be in force; or
 - (c) if both a declaration under section 95AE and a national emergency declaration are in force—the later of the days on which they cease to be in force.

5 At the end of Division 3 of Part VII of Chapter 6

Add:

95AC Exceptional circumstances class exemptions

- (1) If a declaration mentioned in subsection (2) is in force, the Commission may, in writing, determine that one or more specified provisions of Division 1 or 2 of Part IV do not apply to a kind of conduct specified in the determination.
- (2) The declarations are the following:
 - (a) a declaration under section 95AE;
 - (b) a national emergency declaration (within the meaning of the *National Emergency Declaration Act 2020*).
- (3) The Commission must not make a determination under subsection (1) unless the Commission is satisfied that, in all the circumstances, the conduct of that kind would assist, or would be likely to assist, in the response to or recovery from the exceptional circumstances or emergency to which the declaration relates.
- (4) In making a determination under subsection (1), the Commission:
 - (a) must have regard to:
 - (i) the likely benefit to the public resulting from the assistance, or likely assistance, in response to or recovery from the exceptional circumstances to which the declaration relates; and
 - (ii) the detriment to the public that would result, or be likely to result, from the conduct; and
 - (b) may have regard to any other public benefit that would result or likely result from the conduct.
- (5) The Commission may specify in the determination any one or more of the following limitations:
 - (a) a limitation to persons of a specified kind;
 - (b) a limitation to circumstances of a specified kind;
 - (c) a limitation to conduct that complies with specified conditions.
- (6) Without limiting paragraph (5)(c), a condition may include a requirement to obtain the approval of the Commission before engaging in certain conduct.
- (7) The determination is in force for the period:

- (a) starting on the day specified in the determination (which may be before the commencement of this section, but must not be before 1 April 2026); and
 - (b) ending at the earliest of the following:
 - (i) the start of the day specified in the determination;
 - (ii) if the determination is revoked—the end of the day the revocation takes effect;
 - (iii) the end of the last day on which a declaration mentioned in subsection (2) to which the determination relates is in force.
- (8) While the determination remains in force, but subject to section 95AD and any limitations specified under subsection (5) of this section, the provisions of Division 1 or 2 of Part IV specified in the determination do not apply in relation to conduct of the kind specified in the determination.
- (9) The determination must specify the exceptional circumstances or emergency to which it relates.
- (10) A determination made under subsection (1) is a legislative instrument and, despite anything in section 44 of the *Legislation Act 2003*, section 42 (disallowance) of that Act applies to the instrument.

Note: For variation and revocation, see subsection 33(3) of the *Acts Interpretation Act 1901*.

95AD Commission may withdraw the benefit of exceptional circumstances class exemptions in particular case

- (1) The Commission may give a person a written notice if:
 - (a) a determination in force under section 95AC specifies a kind of conduct; and
 - (b) the Commission considers that:
 - (i) conduct of that kind would not assist, or would not be likely to assist, in the response to or recovery from the exceptional circumstances or emergency specified in the determination; or
 - (ii) conduct of that kind is not appropriate.

- (2) The Commission must, in or with the notice under subsection (1), give the person a written statement of its reasons for giving the notice.
- (3) While a notice under subsection (1) is in force, the determination does not apply to the conduct specified in the notice engaged in by the person.
- (4) The notice under subsection (1):
 - (a) comes into force at the time the Commission gives the person the notice; and
 - (b) ceases to be in force at the earlier of the following times:
 - (i) if the Commission revokes the notice—the day after the day the Commission gives the person the written notice;
 - (ii) the time the determination under section 95AC ceases to be in force.

6 At the end of Part VII of Chapter 6

Add:

Division 4—Declaration of exceptional circumstances

95AE Minister may declare exceptional circumstances

- (1) The Minister may, by legislative instrument, make a declaration under this section if the Minister is satisfied that:
 - (a) either:
 - (i) exceptional circumstances that are causing significant harm to the Australian economy or Australian consumers exist; or
 - (ii) exceptional circumstances that would cause significant harm to the Australian economy or Australian consumers are likely to exist; and
 - (b) it is in the public interest to empower the Commission to make determinations under either or both of the following:
 - (i) section 92D;
 - (ii) section 95AC.
- (2) A declaration under subsection (1) is in force for the period:

- (a) starting on the day specified in the declaration (which may be before the commencement of this section, but must not be before 1 April 2026); and
 - (b) ending at the earlier of:
 - (i) the start of the day specified in the declaration; and
 - (ii) if the declaration is revoked—the end of the day the revocation takes effect.
- (3) A day specified for the purposes of subparagraph (2)(b)(i) must ensure that the period the declaration is in force:
- (a) is no longer than the period that the Minister considers necessary for the purposes of emergency management; and
 - (b) is not longer than 6 months.

Note 1: For variation and revocation, see subsection 33(3) of the *Acts Interpretation Act 1901*.

Note 2: The period may be extended under section 95AF.

95AF Extension of declaration of exceptional circumstances

- (1) The Minister may, by legislative instrument, extend the operation of a declaration under section 95AE if the Minister is satisfied that the exceptional circumstances mentioned in subparagraph 95AE(1)(a)(i) are likely to continue to exist beyond the period in which the order will be in force.
- (2) The Minister may, under subsection (1), extend the operation of an order more than once. However, each period of extension must not exceed 3 months.

Part 2—Consequential amendments

Competition and Consumer Act 2010

7 At the end of subsection 87ZP

Add:

- (3) A reference in this Division to an authorisation is a reference to an authorisation under this Division.

National Emergency Declaration Act 2020

8 Section 10 (paragraph (k) of the definition of *national emergency law*)

Omit “section 88 or 90”, insert “section 92D or 95AC”.

Schedule 2—Increasing penalties for contraventions of the Oil Code of Conduct

Competition and Consumer Act 2010

1 Subsection 51ACF(2)

Repeal the subsection, substitute:

Industry codes relating to food and groceries, or oil

- (2) This subsection applies to an industry code that:
- (a) relates to:
 - (i) food and groceries; or
 - (ii) the conduct of suppliers, distributors and retailers in the petroleum marketing industry; and
 - (b) provides that this subsection applies to the code.

2 Subsection 51AE(2)

Omit “the industry of franchising or food and groceries”, substitute “an industry covered by subsection (2AA)”.

3 After subsection 51AE(2)

Insert:

- (2AA) This subsection covers the following industries:
- (a) franchising;
 - (b) food and groceries;
 - (c) suppliers, distributors and retailers in the petroleum marketing industry.

4 Subsection 51AE(2A)

Omit “the industry of franchising or food and groceries”, substitute “an industry covered by subsection (2AA)”.

5 Subparagraph 51AE(2A)(c)(i)

Omit “the industry of franchising”, substitute “the industry covered by paragraph (2AA)(a)”.

6 Subparagraph 51AE(2A)(c)(ii)

Omit “the industry of food and groceries”, substitute “the industry covered by paragraph (2AA)(b) or (c)”.

7 Application of amendments

The amendments made by this Schedule apply in relation to contraventions that happen, or are alleged to happen, on or after the day this Schedule commences.

*[Minister’s second reading speech made in—
Senate on 13 May 2026
House of Representatives on 25 May 2026]*

(63/26)
